

Basant Kumar vs The State Of Jharkhand on 29 July, 2022

Author: Sanjay Prasad

Bench: Sanjay Prasad

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IN THE HIGH COURT OF JHARKHAND AT RANCHI
Cr. Revision No. 984 of 2019

.....
Basant Kumar Petitioner

-Versus-

1. The State of Jharkhand
2. Soni Devi @ Suman Devi
3. Mitti
4. Arush @ Ansh Opp. Parties

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Present

HON'BLE MR. JUSTICE SANJAY PRASAD

.....
For the Petitioner : Mr. Ramawatar Sharma, Advocate
For the State : Mr. V. S. Sahay, A.P.P.
For the O. P. No. 2 : Mr. A. K. Sahani, Advocate

C.A.V. on 06/04/2022

Pronounced on 29/07/2022

JUDGEMENT

The instant Criminal Revision Application has been filed on behalf of the petitioner challenging the judgment dated 02.05.2019 passed by Sri Sunil Kumar Singh, learned Principal Judge, Family Court, Koderma in Original Maintenance Case No. 01 of 2019 under Section 125 of the Cr. P. C. whereby the petition filed under Section 125 of the Cr. P. C. by Soni Devi @ Suman Devi i.e. opposite party no.2 has been allowed and learned Principal Judge, Family Court, Koderma has ordered the petitioner to pay Rs. 10,000/- only per month to the opposite party no. 2 and Rs. 6,000/- per month to the opposite party nos. 3 and 4 each for their maintenance and maintenance allowance is payable from the date of order and total maintenance amount is allowed to Rs. 22,000/- which has been made payable by the husband on or before 2nd day of each English month of Gregorian Calendar failing which the opposite party may apply to the Court for the enforcement of the order and it may be levied and recovered in the manner provided for a levying fine.

It is further ordered that to ensure the regular and timely payment of the maintenance amount opposite party no. 2 may have liberty to move an appropriate application before the Employer of the petitioner praying that the amount of maintenance shall be sent to her account directly. The opposite party no. 2 has also been directed to give the account number to the Employer of the present petitioner of this Criminal Revision Application.

2. The case of the petitioner-husband mentioned in para-3 of the impugned judgment of Family Court in Original Maintenance Case No. 01 of 2019 is as follows:-

"(i) The petitioner-husband has contested the maintenance claim filed by his wife Soni Devi @ Suman Devi and filed his show-cause reply where he has stated that the petition is not maintainable and liable to be dismissed. The petition has been filed only to disturb the life of the petitioner. The allegations levelled against the petitioner are false and concocted. The petitioner has admitted the marriage held between the parties on 15.12.2012 at Jhumritelaiya and thereafter the opposite party no. 2 was staying in the matrimonial home. It is also stated that the opposite party no. 2 was taken by the petitioner to his work place Vishrampur where he is working in Eastern Coalfield Ltd. Balrampur Kumda, District-Surajpur (Chhatisgarh). It is also admitted that from the wedlock two children are born. It has been stated that the opposite party no.

2 was kept nicely with full dignity in the matrimonial home and she was living happily and the opposite party no. 2 was never tortured by the petitioner. It has been stated that sometimes the family members of the opposite party no. 2 used to come to his house at Vishrampur and instigated the opposite party no. 2 and thereafter the opposite party no. 2 used to torture the petitioner. The opposite party no. 2 is not ready to stay in the matrimonial home at Vishrampur. The opposite party no. 2 came to Jhumritelaiya by calling her parents. The opposite party no. 2 was saying that she does not like to stay in Colliery Area. There is no good market place where the petitioner was staying in Vishrampur. The petitioner was in mental stress and facing difficulty in performing his duty properly. It has been stated that on 14.09.2016, the parents of the opposite party no. 2 came and took away the opposite party no. 2 forcefully. II. The petitioner has filed a case Under Section 9 of the Hindu Marriage Act for restitution of conjugal rights and is willing to keep his wife vide case bearing No. 10A/2017. It is stated that the opposite party no. 2 has filed a false case of dowry demand in the Court of SDJM. Koderma vide complaint Case No. 314 of 2017 dated 22.04.2017 and accordingly a FIR was registered arising out of Complaint Case No. 578 of 2017 under Section 363/467/471/420/120 of the Indian Penal Code. Accordingly, the Telaiya P. S. Case No. 205 of 2017 was registered. In the said Telaiya P. S. Case No. 116 of 2017 Anticipatory Bail was filed and in the mediation centre, a compromise was held between the parties on 24.07.2017 by a duly executed compromise and on that basis the opposite party no. 2 was taken to the matrimonial home. One another false complaint was filed by the opposite party no. 2 on 27.07.2017 against the petitioner, despite the efforts taken by the petitioner to keep the opposite party no. 2 nicely. The opposite party no. 2 was not willing to stay with the petitioner. It is also stated by the petitioner that the opposite party no. 2 was brought to matrimonial home after compromise in Original Maintenance Case No. 21 of 2017. The opposite party no. 2 stayed peacefully in the matrimonial home for around seven months. In the said compromise one of the conditions was that the opposite party no. 2 will withdraw all pending cases between the parties but the opposite party no. 2 refused to withdraw the said cases. Due to non-withdrawal of those cases, non-bailable warrant was issued from the Court at Koderma for giving evidence and for the said reason making false allegation, the opposite party no. 2 falsely reported the matter to Vishrampur police station in Chhatisgarh. The petitioner was arrested in that case lodged against the opposite party. The opposite party no. 2 called her parents

and went to her parental house. It has been stated by the petitioner that his monthly salary is Rs. 40,000/- from which he has to spend on his ailing parents and also paying installment to the finance company from whom he has taken loan.

3. The case of the Opposite Party no. 2- wife is that on 02.01.2019, she had filed application being Original Maintenance Case No. 01 of 2019 in the Court of learned Principal Judge, Family Court, Koderma for grant of monthly Maintenance of Rs. 35,000/- for herself and also to daughter Mitti and Arush @ Ansh under Section 125 of the Cr. P. C. stating inter alia that her marriage was performed on 16.12.2012 with Basant Kumar (i.e. the petitioner) at Jhumri Teliya according to Hindu Rites and Rituals by their guardians. On eve of marriage her father spent Rupees Twelve Lakh (Rs. 12,00,000/-) in the marriage. On the eve of the marriage Rs. 8,51,000/- cash, different articles worth Rs. 1,50,000/- and jewellery of Rs. 2,00,000/- were given to him.

Basant Kumar is working in Coalfield and is presently posted at Bishrampur, District-Surajpur as an "Overman" and presently getting Rs. 70,000/- per month as Salary. He is also getting Rs. 20,000/- per month as 'Over Time' and in this way his income is around Rs. 90,000/- per month. He has also 25 Acres of land in his ancestral village- Domchanch from which he has annual income of Rs. 4,00,000/-. After marriage she stayed nicely in the matrimonial home for about 2-3 months and thereafter there was demand of four wheeler vehicle as an additional dowry and due to non fulfillment of demand of additional dowry by her parents, Basant Kumar and his other family members started misbehaviour with her. She was abused and physically assaulted in matrimonial home. Six time Panchayati was conveyed with regard to the dispute between them and after due apology she was brought in the matrimonial home.

Further case is that during the period when they were staying together she was blessed with a daughter and a son who are aged about 5 year and 3 year respectively. On 10.09.2016 she was physically assaulted and thrown out from quarter at Bishrampur at night and on information, her brother and mother came to Bishrampur but brother Rajendra returned after settlement and mother stayed there. There was no change in the behavior. Again on 15.09.2016 Basant Kumar again assaulted and thrown her out from the Matrimonial home. Her mother was also misbehaved, she was brought to Telaiya and treated at Ranchi. Basant Kumar is a habitual drunker and has also illicit relationship with another woman and so her matrimonial life has been disturbed.

The further case is that after the incident of 15.09.2016, a compromise was held between the parties and she was brought to her Matrimonial home. She has no source of income and is not working anywhere and she is unable to maintain herself and her children.

On 03.03.2017, a panchaiyati was again held in Krishna Hotel, Jhumri Telaiya, but there was no change in his behavior. She has filed a Maintenance Case being No. 21 of 2017 in Family Court, Koderma and at the stage of final hearing, a settlement was arrived and compromise was held on 10.08.2017 between the parties in O. M. Case No. 21 of 2017 in which Interim Maintenance of Rs. 8,000/- was fixed. On 06.04.2018, the matter was settled and she was taken to matrimonial home and she stayed nicely for sometime at Kunda, Bishrampur. He again started behaving in the same manner as earlier, she was not properly treated for her illness, she was not provided with proper

food and other necessary amenities. She stayed in the matrimonial home for about 8 months with him and hoped that everything will be alright. Basant Kumar on 27.10.2018 at about 10.30 P.M. assaulted her and went to his duty leaving her in injured condition. She went to Kunda outpost from there and she was sent to Bishrampur and her husband was arrested and released on bond. She informed about the incident to her parents at Jhumri Telaiya. The father, sister and brother went to Bishrampur, but her husband refused to keep her and so on 29.10.2018 they have brought her to Jhumri Telaiya and since then she is staying in her parental house.

She also alleged that her husband has got illicit relationship with various women in mining area where he is working. In spite of undertaking, he refused to keep her in matrimonial home and so she filed an application for grant of maintenance allowance of Rs. 35,000/- per month for herself and her minor children.

4. "During pendency of the case before the learned Court below, the opposite party no. 2 i.e. wife got examined three witnesses as follows:-

three witnesses have been produced and examined:-

- (i) P.W.-1 is Soni Devi @ Suman Devi i.e. opposite party no. 2 herself.
- (ii) P.W.-2 is Krishna Kumar Modi i.e., the father of the opposite party no. 2 and
- (iii) P.W.-3, Rajendra Kumar Burnwal, the brother of the opposite party no. 2.

5. It is further mentioned that certain documents have also been brought on record by the opposite party no. 2 (i.e. the wife) of the case which are marked exhibits as follows:-

- (i) Ext.-PW 1/1 is the certified copy of the written report of the Vishrampur police station dated 28.10.2018,
- (ii) Ext. P.W. 1/2 is certified copy of complaint to Executive Magistrate, Surajpur Case No. 344 of 2018,
- (iii) Ext. - PW 1/3 is certified copy of Itegas bearing no. 120/1700/2018,
- (iv) Ext. -PW 1/4 is certified copy of Sanha dated 28.10.2018,
- (v) Ext.-PW 1/5 is certified copy of arrest/surrender memo dated 28.10.2018.

6. Besides the aforementioned documents certain photocopy of bank passbook and ATM receipt which have been brought on record and same have been marked as X and X1 for its identification."

7. The petitioner (husband) has examined three (03) witnesses and filed the following documents as Exhibits in support of his case, which are as follows:-

8. Three witnesses have been produced and examined as follows:-

- (i) D. W.-1 is Kyaso, maid working in the house of Vishrampur
- (ii) D. W. -2 is Bimlesh Kumar Singh and
- (iii) D. W. -3, Basant Kumar i.e. the petitioner -husband himself.

9. It may be mentioned that certain documents have also been brought on record, which are marked exhibited as follows:-

- (i) Ext.-DW3/A is the statement of account No. 31938378691
- (ii) Ext.-DW3/B is the copy of car loan.
- (iii) Ext.-DW3/B1 is the copy of personal loan.
- (iv) Ext.-DW3/C to DW3/C3 are the salary slips of the petitioner-husband for the months of October 2018, November 2018, January 2018 and February 2019 respectively.
- (v) Ext.-DW3/D is LIC Certificate.
- (vi) Ext.-DW3/E is the certified copy of the compromise in Maintenance Case No. 21 of 2017.
- (vii) Ext.-DW3/F to Ext.-DW3/F3 are the deposit slips.

10. Besides the aforesaid documents, the photocopy of the order passed in Maintenance Case No. 21 of 2017, compromise between the parties in Maintenance Case No. 21 of 2017, evidence of OM Case No. 21 of 2017, receipt of school and medical prescription of the opposite party-wife have been brought on record, which has been marked as "Y to Y4" respectively for its identification.

11. Heard learned counsel for the petitioner and learned counsel for the opposite party no. 2.

12. It is submitted by the learned counsel for the petitioner that the order dated 02.05.2019 passed by the learned Principal Judge, Family Court, Koderma is illegal and not sustainable in the eyes of law. It is submitted that Maintenance Case filed on behalf of the opposite party no. 2 i.e. wife is not maintainable, because of the maintenance order was passed on 02.05.2019 whereas on 27.04.2017, learned District Judge, Surajpur, Chhatisgarh has passed the order under Section 9 of the Hindu Marriage Act. It is submitted that the petitioner did not appear in the said Civil Suit No. 10A of 2017 deliberately even after receipt of notice and therefore, the order dated 02.05.2019 passed by the learned Principal Judge, Family Court, Koderma is liable to be set aside, in view of the order dated 27.04.2017 passed in Civil Suit No. 10A of 2017 by the learned District Judge, Surajpur, Chhatisgarh

by granting the decree under Section 9 of the Hindu Marriage Act directing the opposite party no. 2 to live her conjugal life with the petitioner. It is submitted in the present Original Maintenance Case No. 01 of 2019, the order dated 02.05.2019 has passed by the Family Court is the second maintenance case filed by the opposite party no. 2 without considering the fact that earlier also opposite party no.2 had filed the Maintenance Case No. 21 of 2017, which was disposed of on 06.04.2018 on the basis of compromise entered into between the petitioner and the opposite party no.

2. It is submitted that although the petitioner tried to keep his wife with full honour and dignity, but the opposite party no. 2 did not live properly and left her matrimonial house after seven (7) months even after compromise. It is submitted that family members of opposite party no. 2 used to harass and institute a false case against him and also used to interfere in the day to day work of the petitioner. Therefore, Original Maintenance Case No. 01 of 2019 is hit by the principle of res-judicata in view of the institution of earlier Original Maintenance Case No. 21 of 2017 by the said opposite party no. 2. It is submitted that opposite party no. 2 is not willing to live with the petitioner and his old aged parents. It is submitted that opposite party no. 2 is earning of Rs. 2,00,000/- by running sweet shop in the name of Suman Sweets and hence the impugned order dated 02.05.2019 passed by the learned Principal Judge, Family Court, Koderma may be set aside.

13. On the other hand, it is submitted by the learned counsel for the opposite party no. 2 that the impugned order dated 02.05.2019 passed by the learned Principal Judge, Family Court, Koderma is fit and proper. It is submitted that ex-parte order dated 27.04.2017 was passed under Section 9 of the Hindu Marriage Act by the learned District Judge, Surajpur, Chhatisgarh. It is submitted that Section 125(4) of the Cr. P. C. is not attracted in this case. It is submitted that earlier in Original Maintenance Case No. 21 of 2017, the opposite party no. 2 was given interim maintenance of Rs. 8,000/- per month, however, the petitioner got withdraw the said Original Maintenance Case No. 21 of 2017 in the garb of compromise and thereafter, no maintenance amount has been paid after staying around eight months in her matrimonial home and the opposite party no. 2 had lodged the FIR under Section 498-A of the Indian Penal Code. It is submitted that the petitioner is getting gross salary of Rs. 70,676/- since January, 2019. It is further submitted that the petitioner has not paid any amount of maintenance to the opposite party no. 2 since 16-17 months. It is submitted that the petitioner has failed to prove any income of opposite party no. 2 and the opposite party no. 2 is not doing anything and she is merely dependent on her parental home with her two children and as such, the order passed by the learned Court below giving her and her children to Rs. 22,000/- per month as maintenance amount is fit and proper and as such, no interference is required from this Court. Learned counsel for the opposite party no.2 has placed reliance upon the judgment rendered by the Hon'ble Supreme Court in the case of Rajneesh Vs. Neha Arora reported in 2021(1) JLR (SC)[1].

14. Perused the impugned order dated 02.05.2019 passed by the learned Principal Judge, Family Court, Koderma and considered the submissions of both the sides.

15. It is evident from the record and the submissions of both the sides that relationship between the parties is admitted and the petitioner is the husband of the opposite party no. 2 and father of the

opposite party nos. 3 and 4.

16. It transpires from the order dated 02.05.2019 under challenge that the petitioner is working in Eastern coalfield Ltd. Balrampur Kumda, district-Surajpur (Chhatisgarh). Although the petitioner has pleaded and has filed the order dated 27.04.2017 passed in Civil Suit No. 10A of 2017 by the learned District Judge, Surajpur, Chhatisgarh by which learned District Judge, Surajpur, Chhatisgarh has passed the order for restitution of conjugal right under Section 9 of the Hindu Marriage Act in favour of the petitioner and against the opposite party no. 2. However, the same is diluted in view of the fact that the petitioner had himself taken the opposite party no. 2 on the basis of compromise entered into between the parties in Original Maintenance Case No. 21 of 2017 on 06.04.2018 before the learned Principal Judge, Family Court, Koderma.

Thus, there is no force in the submission of learned counsel for the petitioner that the maintenance amount is not payable in view of the order dated 27.04.2017 passed in Civil Suit No. 10A of 2017 by the learned District Judge, Surajpur, Chhatisgarh and the said order was passed ex-parte.

17. It further transpires that the petitioner has two children aged about five (5) years and three (3) years respectively having one daughter and one son and the petitioner appears to have fully neglected them by not paying any maintenance amount since last 16-17 months even after passing the order dated 02.07.2019 by the learned Principal Judge, Family Court, Koderma in Original Maintenance Case No. 01 of 2019.

18. So far as quantum of maintenance is concerned, the same to be decided as per the mandate of the judgment rendered by the Hon'ble Supreme Court in the case of Rajneesh Vs. Neha and Another reported in 2021 (2) SCC

324.

19. It has been held in the case of Rajneesh Vs. Neha and Another reported in 2021 (2) SCC 324 at Para-77, 78, 79, 80, 112 and 113, which are as follows:-

"Para-77. The objective of granting interim/permanent alimony is to ensure that the dependent spouse is not reduced to destitution or vagrancy on account of the failure of the marriage, and not as a punishment to the other spouse. There is no straitjacket formula for fixing the quantum of maintenance to be awarded.

Para-78. The factors which would weigh with the court inter alia are the status of the parties; reasonable needs of the wife and dependent children; whether the applicant is educated and professionally qualified; whether the applicant has any independent source of income; whether the income is sufficient to enable her to maintain the same standard of living as she was accustomed to in her matrimonial home; whether the applicant was employed prior to her marriage; whether she was working during the subsistence of the marriage; whether the wife was required to sacrifice her employment opportunities for nurturing the family, child rearing, and looking after

adult members of the family; reasonable costs of litigation for a non-working wife. [Refer to Jasbir Kaur Sehgal v. District Judge, Dehradun, (1997) 7 SCC 7; Refer to Vinny Parmvir Parmar v. Parmvir Parmar, (2011) 13 SCC 112 : (2012) 3 SCC (Civ) 290] Para-79. In Manish Jain v. Akanksha Jain [Manish Jain v. Akanksha Jain, (2017) 15 SCC 801 : (2018) 2 SCC (Civ) 712] this Court held that the financial position of the parents of the applicant wife, would not be material while determining the quantum of maintenance. An order of interim maintenance is conditional on the circumstance that the wife or husband who makes a claim has no independent income, sufficient for her or his support. It is no answer to a claim of maintenance that the wife is educated and could support herself. The court must take into consideration the status of the parties and the capacity of the spouse to pay for her or his support. Maintenance is dependent upon factual situations; the court should mould the claim for maintenance based on various factors brought before it.

Para-80. On the other hand, the financial capacity of the husband, his actual income, reasonable expenses for his own maintenance, and dependent family members whom he is obliged to maintain under the law, liabilities if any, would be required to be taken into consideration, to arrive at the appropriate quantum of maintenance to be paid. The court must have due regard to the standard of living of the husband, as well as the spiralling inflation rates and high costs of living. The plea of the husband that he does not possess any source of income ipso facto does not absolve him of his moral duty to maintain his wife if he is able-bodied and has educational qualifications. [Reema Salkan v. Sumer Singh Salkan, (2019) 12 SCC 303 : (2018) 5 SCC (Civ) 596 : (2019) 4 SCC (Cri) 339] Para-112. In Badshah v. Urmila Badshah Godse [Badshah v. Urmila Badshah Godse, (2014) 1 SCC 188 : (2014) 1 SCC (Civ) 51], the Supreme Court was considering the interpretation of Section 125 CrPC. The Court held : (SCC p.

196, para 13) "13.3. ... purposive interpretation needs to be given to the provisions of Section 125 CrPC. While dealing with the application of a destitute wife or hapless children or parents under this provision, the Court is dealing with the marginalised sections of the society. The purpose is to achieve "social justice" which is the constitutional vision, enshrined in the Preamble of the Constitution of India. The Preamble to the Constitution of India clearly signals that we have chosen the democratic path under the rule of law to achieve the goal of securing for all its citizens, justice, liberty, equality and fraternity. It specifically highlights achieving their social justice. Therefore, it becomes the bounden duty of the courts to advance the cause of social justice. While giving interpretation to a particular provision, the court is supposed to bridge the gap between the law and society."

Para-113. It has therefore become necessary to issue directions to bring about uniformity and consistency in the orders passed by all courts, by directing that maintenance be awarded from the date on which the application was made before the court concerned. The right to claim maintenance must date back to the date of filing the application, since the period during which the maintenance proceedings remained pending is not within the control of the applicant.

20. Although the petitioner has tried to show that the opposite party no.2 is running a sweet shop in the name of Suman Sweets. However, the petitioner has failed to show any chit of paper showing income of the opposite party no. 1 and 2.

21. It further transpires that the petitioner-husband has produced one of the witness D.W.-1 namely Kyaso, who is maid working in the house of petitioner whereas the D.W.-2, Bimlesh Kumar Singh is friend of the petitioner, who has stated that the petitioner was tortured and assaulted by the police of Vishrampur Police Station and D.W-3 is Basant Kumar, i.e. the petitioner himself. It is evident that the petitioner has not shown any circumstances that he was neglected and deserted by the opposite party no.2, rather it reveals from the conduct of the petitioner that he has himself neglected and refused to maintain the opposite party no. 2.

22. DW3/C and DW3/C3 are salary slips of the petitioner for the month of October 2018 and November 2018 and January 2018 and February 2019. However, learned Court below has observed in para-10 of the impugned judgment that the witnesses i.e. the petitioner has admitted his gross salary of Rs. 70,676/- in the month of February 2019 and Rs. 71,392/- in the month of January 2020 and the salary slips have been marked as Ext. 1 and Ext. 2 respectively for its identification.

From scrutinizing the judgment passed by the learned Principal Judge, Family Court, Koderma, it transpires that Ext.-DW3/A is the statement of the account of the petitioner being Account No. 31938378691 and it appears to have been filed only to show his bonafide. Ext.-DW3/B is the copy of car loan and Ext.-DW3/B1 is the copy of personal loan, which indicate that the petitioner has taken car loan and personal loan and he is paying EMI, this cannot be a ground to show that earning is less.

23. It also transpires that learned Court below has discussed the monthly salary of this petitioner, who is opposite party in the learned Court below in page-10 of its impugned judgment. It reveals that this petitioner has admitted his gross salary in the month of February, 2019 as Rs. 70,676/- and his salary for the month of January, 2019 as Rs. 71.392/-. Therefore, it is evident that after paying EMI for car loan and personal loan, monthly salary of the petitioner in the month of January, 2019 as Rs. 71.392/- and February, 2019 as Rs. 70,676/- respectively. Thus, the petitioner is earning more than Rs. 70,000/- per month. The learned Court below has discussed all the documents i.e. Ext.-DW3/B is the copy of car loan and Ext.-DW3/B1 is the copy of personal loan. It further transpires from the judgment passed by the learned Court below that the petitioner has admitted during his evidence that he had given Bio-data to Saddi.com/Marriage.com after the marriage and he has admitted that he has mentioned his salary in Saddi. Com as Rs. 8-9 lacs per annum. It is evident that brining D.W.-1 namely Kyaso, who is working as maid in the house of the petitioner as a witness is not a proper step and her evidence has been rightly rejected by the learned Court below and it only shows that the petitioner is trying to create evidence from a person, who is not a family members of the petitioner.

24. In view of the above, it is evident that the petitioner has thoroughly neglected his wife and children i.e. opposite party nos. 2 to 4 and the order dated 02.05.2019 passed in Original Maintenance Case No. 01 of 2019 by the learned Principal Judge, Family Court, Koderma is well

discussed and reasoned order and speaking one and as such, no interference is required for this Court and the order dated 02.05.2019 passed in Original Maintenance Case No. 01 of 2019 by the learned Principal Judge, Family Court, Koderma is upheld.

25. Accordingly, Criminal Revision No. 984 of 2019 is dismissed, however, without any costs.

Let a copy of this judgment be communicated to the learned Court blow at once by FAX.

(Sanjay Prasad, J.) Kamlesh/